

VCL330258 Citibank, N.A. vs. Minguela, Victor

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-06-25

Motion: Plaintiff's Motion to Set Aside Default and Dismiss Without Prejudice

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Re: Citibank, N.A. vs. Minguela, Victor

Case No.: VCL330258

Date: June 25, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiff's Motion to Set Aside Default and Dismiss Without Prejudice

Tentative Ruling: To grant the motion; to dismiss this matter without prejudice.

Facts and Analysis

While Plaintiff obtained default judgment in this matter on April 29, 2026, counsel for Plaintiff has subsequently discovered that Defendant filed for bankruptcy, and obtained an automatic stay, on April 29, 2026. Therefore, the Court grants Plaintiff's motion to set aside the default and dismiss this matter without prejudice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.